

**LAW AND MOTION TENTATIVE RULINGS**  
**DATE: SEPTEMBER 15, 2026 TIME: 8:30 A.M.**

**No. 25CV00973**

**COSTA v. GENERAL MOTORS, INC.**

**DEFENDANT’S MOTION FOR SUMMARY JUDGMENT**

The motion for summary judgment is granted. Defendant made a prima facie showing that the cause of action for fraudulent inducement – concealment is barred by the applicable statute of limitations. Plaintiff failed to raise a triable issue upon burden shifting.

**I. BACKGROUND**

On May 10, 2017, plaintiff Gary Costa (“plaintiff”) purchased a new 2017 Chevrolet Colorado (“the vehicle”) from Merced Chevrolet. On May 18, 2023, plaintiff brought the vehicle to GM’s (GM” or “defendant”) authorized repair facility, Chevrolet of Watsonville, with issues regarding the check engine light. On June 27, 2023, plaintiff again brought his vehicle in for repairs to Chevrolet of Watsonville, with various complaints including check engine light going on, the fans running after the vehicle shut off, and shimmying when driving above 55 miles per hour. On July 3, 2023, plaintiff brought the vehicle back to Chevrolet of Watsonville for complaints regarding the check engine light going on and off.

On March 27, 2025, plaintiff filed this lawsuit, alleging four causes of action for breach of express and implied warranties pursuant to the Song Beverly Act and a fifth cause of action for fraudulent concealment against defendant General Motors (“defendant”). After a series of demurrers, fraudulent inducement – concealment is the sole surviving cause of action.<sup>1</sup> Plaintiff asserts that “GM committed fraud by allowing the Vehicle to be sold to Plaintiff without disclosing that the Vehicle and its 8-speed transmission were defective and susceptible to sudden and premature failure.” (SAC at ¶ 58.)

**II. DEFENDANT’S MOTION**

Defendant moves for summary judgment pursuant to Code of Civil Procedure section 437c, subdivision (a)(1). Defendant contends that the evidence contradicts plaintiff’s claim that he was fraudulently induced to purchase a vehicle with a defective transmission because plaintiff did not experience transmission-related issues during the nearly eight years he owned the vehicle before filing this action and did not communicate transmission related complaints to defendant’s authorized repair facility.

Defendant’s motion forwards four issues for summary judgment. First, defendant asserts the fraudulent inducement – concealment claim fails because it is time-barred by the three-year

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<sup>1</sup> This is the second cause of action in the Second Amended Complaint.

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statute of limitations, which expired May 10, 2025. Next, defendant asserts that plaintiff is unable to establish his fraudulent inducement – concealment claim because he does not have evidence that defendant had knowledge of a defect at the time of the sale that it was unable or unwilling to repair. Third, defendant contends plaintiff is unable to establish the transactional relationship required to trigger a duty to disclose pursuant to *Ford Motor Warranty Cases* (2025) 17 Cal.5<sup>th</sup> 1122, 1133. Defendant argues plaintiff had no direct dealings with defendant. Finally, defendant maintains plaintiff has not produced evidence to establish an exception not the economic loss rule as the fraudulent inducement claim is not independent of plaintiff’s warranty claims.

The motion is supported by 10 undisputed material facts and a declaration from defendant’s counsel attaching eight exhibits which consist primarily of documents produced by defendant and excerpts from plaintiff’s deposition. Plaintiff did not object to any of the evidence submitted by defendant.

**III. SUMMARY JUDGMENT STANDARD**

“A motion for summary judgment must be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).)” (*Arteaga v. Brink’s Inc.* (2008) 163 Cal.App.4<sup>th</sup> 327, 341.)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4<sup>th</sup> 826, 850.) A defendant moving for summary judgment has the “burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Code of Civ. Proc. § 437c, subd. (p)(2).)

“The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence--as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal. 4<sup>th</sup> 826, 854-855.) A defendant moving

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for summary judgment has the option of presenting evidence showing the plaintiff does not possess evidence to prove that element. “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing” to support an essential element of his case. (*Aguilar*, supra, at p. 855.) “Such evidence may consist of the deposition testimony of the plaintiff’s witnesses, the plaintiff’s factually devoid discovery responses, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action. [Citations.]” (*Lona v. Citibank N.A.* (2011) 202 Cal.App.4th 89, 110.) “[A] defendant must make an affirmative *showing* in support of his or her motion.” (*Hagen v. Hickenbottom* (1995) 41 Cal.App.4th 168, 186.)

**IV. DISCUSSION**

i. *Issue 1: Is the cause of action for fraudulent inducement-concealment time barred?*

a. *Issue Framed by pleadings*

In support of this cause of action, plaintiff asserts defendant “committed fraud by allowing the Vehicle to be sold to Plaintiff without disclosing that the Vehicle and its 8-speed transmission were defective and susceptible to sudden and premature failure. Plaintiff purchased the Subject Vehicle equipped with GM’s defective 8-speed transmission.” (SAC at ¶ 59.)

The SAC alleges the statute of limitations has been tolled by equitable tolling, the discovery rule, equitable estoppel, the repair rule, and/or class action tolling. Plaintiff alleges he discovered the wrongful conduct shortly before the filing of this complaint, as the Vehicle continued to exhibit symptoms of defects following GM’s unsuccessful attempts to repair them.” (SAC at ¶¶ 33-34.) Specific to the claim of fraudulent concealment, plaintiff asserts that the statute of limitations is equitably tolled due to defendant’s fraudulent conduct – defendant is alleged to have concealed the defects, minimized the scope, cause, and dangers of the defect. (SAC at ¶ 49.)

b. *Defendant’s prima facie case*

Defendant asserts the undisputed facts show that plaintiff purchased the vehicle at issue on May 10, 2017, but did not file this action until March 27, 2025. (UMF Nos. 1, 3; Perez Decl. Ex. 6.) A claim based upon fraud accrues within three years from the date of the discovery by “the aggrieved party, of the facts constituting the fraud or mistake.” (Code of Civil Procedure §

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338, subd. (d).) Therefore, defendant maintains this cause of action is time barred and plaintiff is unable to produce any evidence of which would support a claim for tolling. Defendant asserts that the only documents produced by plaintiff consist of the retail sales contract from 2017. (UMF No. 9.) In deposition, plaintiff was asked whether he had produced all documents to support his claim against defendant, to which defendant responded to in the affirmative. (UMF No. 8.) Therefore, defendant has met its initial burden that this cause of action is time-barred, and the burden shifts to plaintiff to raise a triable issue of one or more material facts.

*c. Plaintiff's Burden*

In opposition, plaintiff argues, without citing to authority, that “statute of limitations are not appropriate for resolution on a motion for summary judgment and present question of fact for the jury ... .” (Opp. at p. 2.) Statue of limitations issues can be determined on summary judgment. (See, *Bennett v. McCall* (1993) 19 Cal.App.4<sup>th</sup> 122, 125; *Uram v. Abex Corp.* (1990) 217 Cal.App.3d 1425, 1430-1431.) There is no dispute that the cause of action has a three-year statute of limitations and that the case was filed beyond that time.

Plaintiff argues the statute of limitations was tolled because of GM’s wrongful concealment of the transmission issue. Specifically, plaintiff argues there is evidence that the transmission was having issues in 2023 (via his deposition testimony, he told the dealer the vehicle “surged”) and because “a claim for fraudulent concealment by a manufacturer does not accrue when a consumer experiences symptoms that might have multiple possible causes; it accrues when a consumer has reason to suspect that a manufacturer concealed a known defect before the sale, which in this case would not have been prior to having transmission problems in 2023.” (Opp. at p. 2.) Plaintiff maintains he had no way of discovering that defendant “concealed a systemic transmission defect until shortly before filing suit.” He contends that he “cannot be expected to discover what GM actively hid.” Plaintiff argues that “GM issued many service bulletins and service bulletin update to its dealers in the United Stated, but not its customers, acknowledging problems of harsh shifting, jerking, clunking, and delays in acceleration relating to the 8-speed transmission equipped in Plaintiff’s Vehicle.” (Opp. at p. 3.)

Plaintiff’s opposition lacks facts to support the allegations of GM’s alleged concealment or when plaintiff discovered the alleged concealment. His argument concerning GM issued service bulletins is not supported by admissible evidence. The opposition asserts GM concealed a systemic transmission defect that plaintiff did not learn of until shortly before filing this suit but there is not a declaration from plaintiff stating when he learned of the alleged fraudulent concealment. Plaintiff simply argues that the information or documents supporting the knowledge of the transmission defects was not available to plaintiff “through reasonable diligence because GM’s knowledge of the defect was deserved exclusively from internal sources

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... .” (Opp. at p. 4.) Plaintiff has not provided this Court with any admissible evidence as to his theory that defendant fraudulently concealed a transmission issue in this case involving plaintiff’s vehicle. There is no evidence of plaintiff’s vehicle having a transmission problem (other than his deposition testimony about a “surge”), let alone evidence of a transmission issue that is of the same type that defendant allegedly kept concealed from its consumers. While the allegations in the SAC may be sufficient to overcome a statute of limitations defense raised on demurrer, they are insufficient to create a triable issue of material fact at summary judgment. “Evidentiary facts are required to support a summary judgment. Conclusions of fact or law are not sufficient.” (Weil & Brown *Civil Proc. Before Trial* (TRG 2026) § 10:119.)

Defendant’s motion from summary judgment is granted because the fraudulent inducement-concealment cause of action is barred by the applicable statute of limitations. Plaintiff failed to raise a triable issue as to the application of tolling of this time limit. Because this ruling is dispositive of the entire case, the Court declines to rule on the other bases for summary judgment defendant raises.

**No. 23CV00035**

**KEYES v. BAKER**

**(UNOPPOSED) PLAINTIFF’S MOTION TO COMPEL RESPONSES TO  
REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE; FORM  
INTERROGATORIES, SET ONE; SPECIAL INTERROGATORIES, SET ONE  
AND TO DEEM ADMITTED ALL MATTERS SPECIFIED IN REQUEST FOR  
ADMISSIONS, SET ONE AND FOR SANCTIONS**

The unopposed motions are granted.

This is a dispute involving a loan. Peter Keyes, now deceased, sold 330 River Road, Boulder Creek, CA to defendants Edsel and Susan Baker. The Keyes received a promissory notice and deed of trust in the amount of \$260,000.00 from the Bakers. The Bakers took a home equity line of credit against the property. The Bakers allegedly stopped making payments as promised to the Keyes in 2020. In the interim the Bakers sold the property to now-dismissed defendants Travis and Lindsey Barron and Chri Boardman. Plaintiff alleges various causes of action against the Bakers including elder abuse, breach of contract, conversion, quiet title and she seeks declaratory relief and for a constructive trust.

On October 20, 2025, plaintiff served requests for admission set one; requests for production of documents, set one; and form and special interrogatories on defendants Susan and